

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, July 10, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-01683	Gabriel Zamorano Lugo, et al. vs Auto Resources, Inc., et al.
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Application for Distribution of Interplead Funds

Cross-Defendant Apodaca's application for distribution of interplead funds is DENIED.

There are two major deficiencies with Cross-Defendant's answer. First, the general and specific denial of "each and every allegation contained in the complaint . . ." (Apodaca Answer, 3:4-5.) This undermines the foundation of Cross-Defendant's claim to the funds as it in effect denies the allegation that there are adverse and conflicting claims. (ACIC Complaint, No. 9, 3:7-9.)

Second, Cross-Defendant's answer to the complaint for interpleader does not meet the pleading requirements of Code of Civil Procedure section 386, subdivision (d). Code of Civil Procedure section 386, subdivision (d) states the answer "shall contain allegations of fact as to his ownership of or other interest in the amount or property . . ." (Code Civ. Proc. § 386, subd. (d).)

Here, Cross-Defendant's answer merely states in conclusory fashion at Number 5 that "The claims of Cross-Defendant have priority over all other Cross-Defendants." (Apodaca Answer, No. 5, 3:27.) A bare assertion of entitlement, without factual support, does not satisfy the requirements of section 386, subd. (d) and does not place the claim

at issue before the court. (See *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476.)

Cross-Defendant's application for distribution of interplead funds does not remedy the above deficiencies as it is equally deficient as to factual support.

25CV-02170

City of Fresno Employees Retirement System, et al. vs City of Fresno

Motion for Judgment on the Pleadings

The motion for judgment on the pleadings is **DENIED** as to the second cause of action, and **GRANTED WITH LEAVE TO AMEND** as to the third cause of action.

When reviewing a pleading, a demurrer or motion for judgment on the pleadings admits the truth of all material allegations and a court will "give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context." (*People ex rel. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300.)

Cross-Complainant's second cause of action adequately pleads a breach of fiduciary duty. Although a breach of fiduciary duty may be a legal claim, it may also be equitable in nature. Breach of fiduciary duty claims in California carry a particularly robust set of available equitable remedies, including injunctive relief. In this instance, when the cross-complaint is read as a whole, the breach of fiduciary duty cause of action sounds in equity and is sufficient at the pleading stage.

As to the third cause of action for negligence, equitable relief is generally available only if legal remedies such as monetary compensation are inadequate. Here, the cross-complaint alleges Cross-Complainant was monetarily harmed as a result of Cross-Defendant's alleged actions. (FACC, ¶¶ 104-106, 14:18-25.) In this context, Cross-Complainant's third cause of action appears to seek monetary damages and does not adequately plead equitable relief so as to preclude the Government Claims Act and the immunities thereto from applying. Cross-Complainant has requested leave to amend, which is granted.

Any amended cross-complaint is to be filed within ten (10) days of this court's order.

Case Management Conference

CONTINUED ON THE COURT'S OWN MOTION to August 14, 2026, at 8:15 a.m. in Courtroom 8 in light of the above ruling.
